

24VECV04473 24VECV04473

County: los-angeles

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Case Number: 24VECV04473 Hearing Date: August 20, 2026 Dept: O

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF LOS ANGELES - NORTHWEST DISTRICT

FELIPE ARGUETA,

Plaintiff,

vs.

BODEGA

LATINA CORPORATION DBA EL SUPER; CHEDRAUI, USA, INC.; and DOES 1-50,
inclusive,

Defendants.

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CASE NO.: 24VECV04473

ORDER

DENYING DEFENDANT CHEDRAUI USA, INC.'S MOTION TO COMPEL PLAINTIFF'S
INDEPENDENT NEUROLOGICAL MEDICAL EXAMINATION

I.

BACKGROUND

This is a personal injury action
arising from a slip-and-fall incident on December 29, 2023.

II.

PROCEDURAL

HISTORY

On September 18, 2024,
Felipe Argueta ("Plaintiff") filed a complaint against Bodega Latina
Corporation dba El Super and Chedraui USA ("Chedraui") (collectively,
"Defendants") alleging negligence and premise liability.

On October 23, 2024,
Chedraui filed its Answer.

On November 25, 2025,
the Court denied Chedraui's Motion for Summary Judgment.

On June 26, 2026, the Court denied Chedraui's Motion to Compel Plaintiff's Independent Neurological Medical Examination.

On July 24, 2026, Chedraui filed the instant Motion to Compel Plaintiff's Independent Neurological Medical Examination.

On August 6, 2026, Plaintiff filed an Opposition.

On August 13, 2026, Chedraui filed a Reply.

III.

LEGAL

STANDARD

"This section specifies the court's jurisdiction with regard to applications for reconsideration of its orders and renewals of previous motions, and applies to all applications to reconsider any order of a judge or court, or for the renewal of a previous motion, whether the order deciding the previous matter or motion is interim or final. No application to reconsider any order or for the renewal of a previous motion may be considered by any judge or court unless made according to this section." (Code Civ. Proc. § 1008(e).) Unlike a motion for reconsideration, there is no time limit under § 1008 for the renewal of a previous motion. (See *id.*, § 1008(b), (e); *Stephen v. Enterprise Rent-A-Car of San Francisco* (1991) 235 Cal.App.3d 806, 816.)

Every defendant in a personal injury case is entitled to take one physical examination of the plaintiff without leave of court. (See Code Civ. Proc. § 2032.220.)^[1] If a defendant in a personal injury action wishes to take additional physical examinations or a mental examination of the plaintiff, and the plaintiff will not stipulate to the same, the defendant must bring a motion for leave to compel the requested examination. (See Code Civ. Proc. § 2032.310.) Such a motion should be

granted only for good cause shown. (See Code Civ. Proc. § 2032.320 (a); see also *Vinson v. Superior Court* (1987) 43 Cal.3d 833, 840.) Such a motion must “specify the time, place, manner, conditions, scope, and nature of the examination, as well as the identity and the specialty, if any, of the person or persons who will perform the examination.” (Code Civ. Proc. § 2032.310(b); see *Carpenter v. Superior Court* (2006) 141 Cal.App.4th 249, 260-262.)

A showing of “good cause” requires the moving party produce specific facts justifying discovery and that the inquiry be relevant to the subject matter of the action or reasonably calculated to lead to the discovery of admissible evidence. (See *Vinson*, *supra*, 43 Cal.3d at 840.) The purpose is to protect an examinee's privacy by preventing annoying “fishing expeditions.” (*Id.*) Where plaintiff's injuries are complex, several exams may be necessary by specialists in different fields. (See *Shapira v. Superior Court* (1990) 224 Cal.App.3d 1249, 1255.) There is no limit on the number of physical or mental exams that may be ordered on a showing of good cause. (See *id.*) The good cause requirement checks any potential harassment of plaintiff. (See *id.*)

Code of Civil Procedure § 2032.310 (b) provides: “A motion for an examination under subdivision (a) shall specify the time, place, manner, conditions, scope, and nature of the examination, as well as the identity and the specialty, if any, of the person or persons who will perform the examination. The motion shall be accompanied by a meet and confer declaration under Section 2016.040.” Moreover, pursuant to Section 2032.320(d), the specific diagnostic tests to be performed must be explicitly identified in the court's order and include the time, place, manner, diagnostic tests and procedures, conditions, scope, and nature of the examination. (See *Carpenter v. Sup. Ct.* (2006) 141 Cal.App.4th 249, 260-262.)

To comply with § 2032.320, the Court's order must be able to set forth the names of the tests, and any names provided must have “so precise and finite a meaning in the mental health profession as to be the functional equivalent of a list of specific tests.” (*Id.*, 141 Cal.App.4th at 269.)

IV.

MEET

AND CONFER

“The motion shall be accompanied by a meet and confer declaration under Section 2016.040.” (Code Civ. Proc. § 2032.310(b).) “A meet and confer declaration in support of a motion shall state facts showing a reasonable and good faith attempt, either in person, by telephone, or by videoconference, to informally resolve each issue presented by the motion.” (Id., § 2016.040(a).)

On July 22, 2026, Chedraui's counsel emailed Plaintiff's counsel a renewed meet and confer letter advising counsel that they secured a doctor's declaration addressing the Court's evidentiary concern and requesting that Plaintiff stipulate to the exam. (See Declaration of Andrew Kosch filed July 24, 2026, ¶ 15, Ex. 5.) Chedraui's counsel attests Plaintiff's counsel declined. (See id., ¶ 16.)

Chedraui did not satisfy its obligation to meet and confer in person, by telephone, or by videoconference. Nonetheless, the Court will consider the merits of the Motion.

V.

ANALYSIS

Chedraui brings this renewed motion to compel Plaintiff's neurological examination with Daniel Franc, M.D., PhD, QME on August 31, 2026, at 12 p.m. at 2811 Wilshire Blvd., Suite 777, Santa Monica, CA 90403 pursuant to Code of Civil Procedure § 1008(e). To cure the evidentiary defect this Court identified in its June 26, 2026, Order, Chedraui submits the Declaration of Board-Certified Neurologist Daniel Franc, M.D., Ph.D.

Dr.

Franc attests a neurological exam is necessary to resolve the issue of whether Plaintiff's symptoms may be attributable “to physical deconditioning/non-activity or diabetic peripheral neuropathy [a confounding neurological diagnosis], rather than a trauma-induced nerve root injury.” (See Declaration of Daniel Franc, M.D., Ph.D. filed July 24, 2026, ¶ 10.) Dr. Franc distinguishes an orthopedic surgeon's role from a neurologist's, the latter of which evaluates functional activation and physiology of the central and peripheral nervous

systems causing pain or neurological impairment. (See id., ¶ 11.) Dr. Franc attests Plaintiff has an underlying history of longstanding diabetes and an orthopedic doctor “does not possess the specialized neurological training or clinical experience to evaluate, rule in, or rule out these confounding neurological diagnoses.” Finally, Dr. Franc attests “Without an independent examination performed by a board-certified neurologist, the defense will be deprived of an expert qualified to evaluate the functional health of Plaintiff’s nervous system, assess confounding diagnoses such as diabetic peripheral neuropathy, and determine the true cause of Plaintiff’s subjective symptoms. An in-person physical examination of Plaintiff by me is clinically necessary, objective, safe, and tailored strictly to evaluating Plaintiff’s alleged injuries and medical condition.” (Id., ¶ 13.)

In opposition, Plaintiff argues Chedraui has not cured the defect identified in the previous order because it still has not submitted a declaration from Dr. Ahluwalia showing she cannot perform the neurological exam. (See Opp. at 2:14:19, 6:14-15.) Plaintiff further argues the renewed Motion should be denied because Dr. Franc’s declaration, which was available to be submitted with the initial motion or supplemental briefing, is not a new or different facts under § 1008. (See id., at 2:20-27, 3:24-1, 4:17-22.) Plaintiff cites *Garcia v. Hejmadi* (1997) 58 Cal.App.4th 674 for the proposition that evidence available through the exercise of reasonable diligence before the original motion cannot constitute “new or different facts” within the meaning of § 1008. (See id., at 4:23-27.) Finally, Plaintiff argues Chedraui makes no showing of good cause for a second IME. (See id., at 7:17-18.)

In reply, Chedraui argues Dr. Franc’s declaration attesting to why an orthopedic examination cannot evaluate functional nervous system physiology, nor perform the differential diagnosis required to rule out Plaintiff’s longstanding diabetic peripheral neuropathy or physical deconditioning supplies new facts sufficient for a renewed Motion under § 1008. (See Reply at 2: 11-20.) Chedraui argues the prior order found good cause exists for a second examination and noted the absence of a declaration from either expert explaining why a neurologist is required to examine these conditions. (See id., at 3:7-8.) Chedraui argues *Garcia* is inapplicable because that case involved a litigant who failed to properly litigate its motion for summary judgment. (See id., at 5:9-15.) Chedraui argues it has demonstrated diligence since the June 26, 2026, Order denying its initial motion and now supplies the necessary declaration to cure the

evidentiary defect. (See *id.*, at 5:22.)

At the June 3, 2026, hearing the Court requested supplemental briefing for the parties to address whether Plaintiff's second IME must be conducted by a neurologist. (See June 3, 2026, Minute Order.) On June 26, 2026, the Court found "good cause exists here for a second medical exam as Plaintiff's condition materially altered since the initial examination." (June 26, 2026, Order at 5.) However, the Court denied the Motion to Compel IME because Chedraui did not provide evidence showing Dr. Franc was necessary for conducting the second examination and why Dr. Ahluwalia could not perform the exam. (See *id.*, at 5-6.)

The Court will deny this Motion as it did the previous one. "A party filing a renewed application must, among other things, submit an affidavit showing what 'new or different facts, circumstances, or law are claimed' (*id.*, subd. (b)) to justify the renewed application, and show diligence with a satisfactory explanation for not presenting the new or different information earlier[.]" (Even *Zohar Construction & Remodeling, Inc. v. Bellaire Townhouses, LLC* (2015) 61 Cal.4th 830, 833.) In *Garcia*, the Court found Garcia's showing did not satisfy § 1008 as Garcia's declaration addressed matters which had been placed at issue by the motion "and there [was] no showing Garcia had been unavailable to counsel anytime during preparation of the initial opposition." (See *Garcia*, 58 Cal.App.4th 690.)

As Chedraui correctly asserts, it is sufficient for either expert to attest to why a neurologist is required to examine the disputed conditions. (See June 26, 2026, Order at 5:23-25.) Chedraui now supplies new facts by way of Dr. Franc's declaration. Dr. Franc explains a neurologist is necessary because an orthopedic surgeon lacks the relevant expertise in examining neurological systems and investigating potentially confounding symptoms or diagnoses. However, Chedraui does not explain why, having been informed of the Court's question of why Plaintiff's second IME needed to be conducted by a neurologist, it did not submit a declaration from Dr. Franc or Dr. Ahluwalia with its supplemental brief prior to the June 26, 2026, hearing. Thus, Chedraui makes no showing of reasonable diligence as contemplated and required by section 1008.

Accordingly,
the Court DENIES Defendant Chedraui USA, Inc.'s Motion to Compel Plaintiff's

Independent Neurological Medical Examination.

VI.

CONCLUSION

Based on the foregoing, the Court DENIES
Defendant Chedraui USA, Inc.'s Motion to Compel Plaintiff's Independent Neurological
Medical Examination.

IT IS SO
ORDERED.

DATED: August 20, 2026

Hon. Michael R. Amerian

Judge,
Superior Court

[1] All statutory references
are to California authority unless stated otherwise.